2025, Session 2

LAWS2100 JURISPRUDENCE

LAWS8005 THEORIES OF LAW AND JUSTICE

W9 – Rights

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Lecture structure and key concepts

Six issues

PART A

1. Identity (or nature)
2. Authority (or source)
3. Content

PART B

4. History
5. Justification
6. Implementation

Some key concepts

- Utilitarian reasoning v deontological reasoning
- Four Hohfeldian incidents/elements (claim, privilege, power, and immunity)
- Negative and positive rights
- Natural law and positive law
- Generations of human rights
- Moral relativism v moral objectivism
- Limitation clauses
- Proportionality analysis

The idea of human rights

- Human rights are *rights* and *freedoms* that belong to all human beings – regardless of race, sex, nationality, ethnicity, language, religion, or any other status
- Human rights include, for example, the right to life and liberty, freedom from slavery and torture, freedom of opinion and expression, the right to work and education
- *Universal Declaration of Human Rights (*1948)

"The General Assembly proclaims this Universal Declaration of Human Rights **as a common standard of achievement for all peoples and all nations**, to the end that every individual and every organ of society, keeping this Declaration constantly in mind, shall strive by teaching and education to promote *respect* for these rights and freedoms and by progressive measures, national and international, to secure their universal and effective *recognition* and *observance*…" (emphasis added)

- Bill of Rights in domestic law and National Constitutions

Six issues

1. Identity – What is (the nature of) a human right?
2. Authority – What is the source of human rights and their authority?
3. Content – What are the fundamental interests protected by human rights?
4. History – Have human rights always existed?
5. Justification – What is the philosophical foundation of our HR regime(s)?
6. Implementation – How can human rights be recognised and observed?

1. The nature of human rights

- Human rights are rights
  - Will Theory: A person has a right if they have control or choice over whether others must or must not act in certain ways; rights are seen as tools for exercising free will (autonomy)
  - Interest Theory: A person has a right if it serves to protect an important interest; rights are justified by the role they play in promoting or safeguarding well-being (welfare)
- Human rights are plural
- Human rights are universal
- **Human rights have high-priority**
  - Human rights have priority over the “general interest”
  - Do (human) rights work as “trumps” or “shields”?
  - A true commitment to human rights is incompatible with a certain type of utilitarian reasoning
  - Act-utilitarianism and the principle of utility (the greatest happiness for the greatest number)

Human rights *qua* rights

Wesley Newcomb Hohfeld (1879 – 1918) identifies four (4) different legal positions within the concept of a "right": (i) claim, (ii) privilege, (iii) power, and (iv) immunity

- X has a *claim-right* against Y with respect to ϕ if and only if Y is under a duty to X to ϕ
- X has a *privilege* to ϕ if and only if X has no duty not to ϕ
- X has a (normative) *power* over Y if and only if X has the ability to alter (through volitional action) Y's normative position
- X holds an *immunity* against Y (in respect of X's normative position), if and only if Y lacks the ability to alter X's Hohfeldian incidents

Negative and positive rights (consider the difference between "freedom from" and "freedom to")

Human rights *qua* human rights

- Article 2 of the *Universal Declaration of Human Rights*:

"Everyone is entitled to all the *rights* and *freedoms* set forth in this Declaration, without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status."

- Human rights are *entitlements* that capture and protect our fundamental interests as human beings
- The idea of humanity
- Individual and group rights (e.g., the right to self-determination)

2. The authority of human rights

Moral vs legal rights

- Are human rights moral rights, legal rights, or both?
- Are there authoritative sources for human rights?

Legal sources and legal interpretation

Constitution of the Republic of South Africa, S39 (1): “When interpreting the Bill of Rights, a court, tribunal or forum (a) must promote the values that underlie an open and democratic society based on human dignity, equality and freedom; (b) must consider international law; and (c) may consider foreign law.”

Absolute vs limited rights

- Are there any absolute human rights?

3. The content of human rights

- First-generation human rights are **civil and political rights**, e.g.: the right to life, equality before the law, freedom of speech, freedom of religion, property rights, the right to a fair trial, and voting rights
- Second-generation human rights are **social, economic, and cultural rights**, e.g.: the right to be employed (under just conditions), the right to food, the right to housing, and the right to health care
- Third-generation human rights include **group and collective rights** (some commentators call these rights ‘solidarity human rights’), e.g.: the right to self-determination, the right to economic and social development, the right to a healthy environment, the right to natural resources, and the right to intergenerational equity and sustainability

PART B

4. History

5. Justification

6. Implementation

4. A bit of history…

- Magna Carta (1215) and English Bill of Rights (1689)
- Constitution of the United States (1789) and US Bill of Rights (1791)
- French Declaration of the Rights of Man and of the Citizen (1789)
- Universal Declaration of Human Rights (1948)
- International Covenant on Civil and Political Rights (1966)
- International Covenant on Economic, Social and Cultural Rights (1966)
- Convention on the Elimination of All Forms of Discrimination against Women (1979)
- Convention on the Rights of the Child (1989)
- UK Human Rights Act 1998 (HRA)



Human Rights in Australia

- Australian laws and institutions (plus ad hoc bodies, such as the Australian Human Rights Commission)
- Federal laws: Age Discrimination Act 2004; Disability Discrimination Act 1992; Racial Discrimination Act 1975; Sex Discrimination Act 1984; Australian Human Rights Commission Act 1986
- State laws: Human Rights Act 2019 (Qld); Charter of Human Rights and Responsibilities Act 2006 (Vic), Human Rights Act 2019 (Qld)
- Human rights treaties: International Covenant on Civil and Political Rights (ICCPR); International Covenant on Economic, Social and Cultural Rights (ICESCR); Convention on the Rights of the Child (CRC); Convention on the Elimination of All Forms of Discrimination against Women (CEDAW); Convention on the Rights of Persons with Disabilities (CRPD); Convention on the Elimination of All Forms of Racial Discrimination (CERD); Convention against Torture (CAT)

5. The philosophical foundations of human rights

Natural law and natural rights

- Catholic thinkers – e.g., Francisco de Vitoria OP (1483 – 1546)
- Modern theories of natural rights – e.g., John Locke (1632 – 1704)

Deontological foundation

- Immanuel Kant (1724 – 1804)

Utilitarianism

- Jeremy Bentham (1748 – 1832)
- Act utilitarianism
- Rule utilitarianism
- Indirect utilitarianism

→ On human rights and indirect utilitarianism, see Waldron's chapter in the reading list

Jeremy Waldron

- Theories of Rights (1984)
- The Right to Private Property (1988)
- Nonsense Upon Stilts: Bentham, Burke and Marx on the Rights of Man (1988)
- The Law: Theory and Practice in British Politics (1990)
- The Dignity of Legislation (1999)
- Law and Disagreement (1999)
- Torture, Terror, and Trade-Offs: Philosophy for the White House (2010)
- The Harm in Hate Speech, Oliver Wendell Holmes Lectures. ISBN 978-0674065895
- The Rule of Law and the Measure of Property, Hamlyn Lectures. ISBN 978-1107653788
- Political Political Theory, Harvard University Press. ISBN 978-0-674-74385-4
- One Another’s Equals: The Basis of Human Equality 2017)
- Thoughtfulness and the Rule of Law (2023)

Can human rights be justified?

"Natural rights is simple nonsense: natural and imprescriptible rights, rhetorical nonsense – nonsense upon stilts."

Jeremy Bentham, *Anarchical Fallacies*, in J. Bowring (ed.), *Works*, vol. 2 (1843)

- Is the idea of human nature just a myth?
- Are rights selfish?
- Are rights an instrument of oppression?
- Are rights a threat to the value of community?
- Are rights ethnocentric?

Moral relativism and objectivism

Moral relativism

- Are moral disagreements rationally resolvable?
- The distinction between metaethical and normative relativism

Moral objectivism/realism

- Are moral statements apt for truth and falsity?

Arguments against relativism

→ On moral relativism and objectivism, see the chapters by Wong and Trigg in the reading list

6. Implementing human rights

- From natural law to positive law
- From moral rights to legal rights
- “Positivisation” of HR into domestic law and international law
- Human rights and constitutionally protected rights
- Articles 1-19 of Basic Law for the Federal Republic of Germany
- In Australia, no bill of rights in the Federal Constitution

→On the relationship between international and domestic human rights regimes, see Samantha Besson, ‘Human Rights and Constitutional Law – Patterns of Mutual Validation and Legitimation’, in Rowan Cruft, S. Matthew Liao and Massimo Renzo (eds), *Philosophical Foundations of Human Rights* (Oxford University Press, 2015) 279-299

Limitations clauses

- Limitation clauses are constitutional provisions that permit the partial limitation of some constitutional rights
- Canadian Charter of Rights and Freedoms, S1 (Guarantee of rights and freedoms): “The Canadian Charter of Rights and Freedoms guarantees the rights and freedoms set out in it subject only to such *reasonable limits prescribed by law* as can be demonstrably justified in a free and democratic society.” (emphasis added)
- What are the conditions under which constitutionally protected human rights can be limited?
- European Convention on Human Rights, Article 15
- Charter of Human Rights and Responsibilities Act 2006 (Vic), S7
- Human rights, limitation clauses, and the principle of proportionality

ECHR, Art 15 – Derogation in time of emergency

1. In time of war or other public emergency threatening the life of the nation any High Contracting Party may take measures derogating from its obligations under this Convention to the extent strictly required by the exigencies of the situation, provided that such measures are not inconsistent with its other obligations under international law.

2. No derogation from Article 2 [Rights to life], except in respect of deaths resulting from lawful acts of war, or from Articles 3 [Prohibition of torture], 4 (paragraph 1) ['No one shall be held in slavery or servitude'] and 7 [No punishment without law] shall be made under this provision.

3. Any High Contracting Party availing itself of this right of derogation shall keep the Secretary General of the Council of Europe fully informed of the measures which it has taken and the reasons therefor. It shall also inform the Secretary General of the Council of Europe when such measures have ceased to operate and the provisions of the Convention are again being fully executed.

Charter of Human Rights and Responsibilities Act 2006 (Vic), S7

Human rights—what they are and when they may be limited

(1) This Part sets out the human rights that Parliament specifically seeks to protect and promote.

(2) **A human right may be subject under law only to such reasonable limits as can be demonstrably justified in a free and democratic society based on human dignity, equality and freedom, and taking into account all relevant factors** including –

(a) the nature of the right; and

(b) the importance of the purpose of the limitation; and

(c) the nature and extent of the limitation; and

(d) the relationship between the limitation and its purpose; and

(e) any less restrictive means reasonably available to achieve the purpose that the limitation seeks to achieve.

(3) Nothing in this Charter gives a person, entity or public authority a right to limit (to a greater extent than is provided for in this Charter) or destroy the human rights of any person.

Robert Alexy on proportionality

- Alexy distinguishes rules (definitive commands) from principles (optimisation requirements)
- Principles must be realised to the greatest extent possible, given legal and factual constraints
- Alexy argues that proportionality is necessarily connected to the adjudication of constitutional rights because rights are principles.
- Three-part proportionality test:
  - Suitability – The measure must be capable of achieving the legitimate aim
  - Necessity – There must be no less restrictive means to achieve the same goal
  - Proportionality in the Narrow Sense (Balancing) – The benefits of the measure must outweigh the detriment to the right infringed
- Alexy introduces a “weight formula” to formalize balancing: Alexy’s formula considers the intensity of interference, the importance of the competing principle, and the degree of certainty about these factors

To summarise…

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